

24STCV25841 24STCV25841

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-08-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C08%2F26%2F2026

Source SHA-256: 56c6fd89dcecadabc295d135af2db4cd10553b5bb75e09db23dc93a10d2f332c

Case Number: 24STCV25841 Hearing Date: August 26, 2026 Dept: 510

No.

9 - Ivan Estrada v. American Honda Motor Company, Inc.

Plaintiff Ivan Estrada's Motion to Compel Compliance with Court's June 1, 2026 Order and Defendant's Court-Ordered Discovery Responses

Plaintiff Ivan Estrada moves to compel

Defendant American Honda Motor Company, Inc. to comply with this Court's June

1, 2026 order, which ordered Defendant to provide further verified responses to

RFP request nos. 75, 78 and 82. Plaintiff also moves to compel Defendant to

comply with its discovery responses.

First, Plaintiff argues that Defendant

provided unverified responses to request nos. 75, 78, and 82 in violation of

the Court's prior order. However, on August 12, 2026, Defendant served the

required verifications, which it inadvertently omitted from its prior

responses. (Payne Decl., ¶ 15.) The Court finds this verification sufficient.

Plaintiff's motion to compel compliance with the Court's order to provide

verified responses is moot.

Second, Plaintiff argues that Defendant's

unverified responses included statements of compliance; however, Defendant

failed to produce any documents. The Court notes an inconsistency between these

two requests for relief: If Defendant's unverified responses were tantamount to

no responses at all, as Plaintiff argues, compelling Defendant to comply with

them would be meaningless. In any event, since this motion was filed, Defendant

produced responsive documents to request nos. 75 and 78, and provided a further

supplemental response to no. 82, indicating inability to comply with the

request. This further supplementation moots Plaintiff's request for relief.

In reply, Plaintiff takes issue with the

content of Defendant's amended responses to request nos. 78 and 82. The Court

cannot consider the sufficiency of Defendant's amended discovery responses in

this motion. Plaintiff brought this as a motion to compel compliance

with Defendant's then-existing discovery responses under CCP § 2031.320. Any

disputes regarding the sufficiency of the amended responses must be raised

through a motion to compel further responses under CCP § 2031.310. This

motion must contain the requisite separate statement.

Plaintiff's request for sanctions in the

amount of \$500 each day Defendant does not comply with its responses after a

new ten-day compliance period is denied as moot.

Disposition

Plaintiff

Ivan Estrada's motion to compel compliance with court's June 1, 2026 order and

Defendant's court-ordered discovery responses is denied.

Defendant

American Honda Motor Company, Inc.'s Motion to Amend or Augment its Expert

Witness Designation

Defendant

American Honda Motor Company, Inc. moves to amend or augment its expert witness

designation. While Plaintiff refused to stipulate to this relief when asked by

Defendant, Plaintiff filed no opposition to the instant motion. Plaintiff thus

provided no explanation for its refusal to stipulate to the requested relief.

Code

of Civil Procedure section 2034.620 provides:

The court shall grant leave to

augment or amend an expert witness list or declaration only if all of the

following conditions are satisfied:

(a) The court has taken into account

the extent to which the opposing party has relied on the list of expert

witnesses.

(b) The court has determined that any

party opposing the motion will not be prejudiced in maintaining that party's

action or defense on the merits.

(c) The court has determined either

of the following:

(1) The moving party would not in the

exercise of reasonable diligence have determined to call that expert witness or

have decided to offer the different or additional testimony of that expert

witness.

(2) The moving party failed to

determine to call that expert witness, or to offer the different or additional

testimony of that expert witness as a result of mistake, inadvertence,

surprise, or excusable neglect, and the moving party has done both of the following:

(A) Sought leave to augment or amend

promptly after deciding to call the expert witness or to offer the different or

additional testimony.

(B) Promptly thereafter served a copy

of the proposed expert witness information concerning the expert or the

testimony described in Section 2034.260 on all other parties who have

appeared in the action.

Here, Defendant requests to amend its

expert designation because all experts previously designated are not available

to inspect Plaintiff's vehicle on the dates he is available. Defendant argues

that it has attempted to schedule the vehicle inspection on at least five

occasions since September 2025. Because of this delay, Defendant has had to

engage a third-party engineering company to conduct the vehicle inspection and

must substitute the previously designated witnesses, who are no longer

available.

The Court finds good cause to allow

Defendant to amend its expert designation. Because the vehicle inspection has

not occurred, Plaintiff has not relied on Defendant's initial expert

designation. There is no evidence that Plaintiff already conducted expert

depositions on this issue. In addition, Defendant exercised reasonable

diligence and would not have called the substitute witness except for Plaintiff's

delays.

Disposition

Defendant

American Honda Motor Company, Inc.'s motion to amend or augment its expert

witness designation is granted. Under Code of Civil Procedure section

2034.620(d), Defendant must make the new expert available immediately for deposition.